

SOFTWARE-AS-A-SERVICE SUBSCRIPTION AGREEMENT

This Software-as-a-Service Subscription Agreement (the "Agreement") is made on March 1, 2025 (the "Effective Date") between Helios Analytics Inc., a California corporation ("Provider"), and Contoso Retail Ltd., a company registered in England and Wales ("Customer").

1. SUBSCRIPTION

1.1 Grant. Provider grants Customer a non-exclusive right to access the Helios Insights platform (the "Platform") for internal business purposes during the Subscription Term.

1.2 Onboarding. Provider shall complete onboarding of Customer within ten (10) Business Days after the Effective Date.

1.3 Acceptance. Customer shall deliver written acceptance or rejection of the Implementation Deliverables within five (5) Business Days after delivery of the Implementation Deliverables.

2. TERM AND RENEWAL

2.1 Subscription Term. The initial term is twelve (12) months from the Effective Date.

2.2 Auto-Renewal. The subscription renews automatically for successive periods of twelve (12) months unless Customer gives written notice of non-renewal at least thirty (30) days before the end of the then-current term.

3. FEES

3.1 Subscription Fee. The annual subscription fee is USD 84,000, invoiced annually in advance.

3.2 Payment. Customer shall pay each invoice within fifteen (15) days after the invoice date.

3.3 Price Changes. Provider may change the subscription fee at any time by notice to Customer.

4. SUPPORT AND SERVICE LEVELS

4.1 Availability. Provider will use reasonable endeavours to make the Platform available 99.5% of the time each month.

4.2 Support. Provider shall respond to Priority 1 support requests within one (1) hour of notification.

4.3 Improvements. Provider will address defects promptly and in a timely manner.

5. LIABILITY

5.1 Cap. Provider's total liability is limited to two times (2x) the fees paid in the twelve (12) months before the claim.

5.2 Customer Indemnity. Customer shall indemnify Provider against all losses arising from Customer's use of the Platform, without limit.

6. CONFIDENTIALITY

6.1 Each party shall keep the other party's Confidential Information confidential during the term and for three (3) years afterwards.

7. GENERAL

7.1 Governing Law. This Agreement is governed by the laws of England and Wales.

7.2 Assignment. Provider may assign this Agreement to an affiliate without notice to Customer.